

There is no evidence in the court's file of proof of service of the motion filed August 20, 2026. Based on the failure to demonstrate proper and timely service, the motion is denied without prejudice.

5. S-CV-0051883 Victoria Figone v. Moana Beach Prop. Owners Assn.

Defendants' motion for a limited reopening of expert discovery

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

6. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

Plaintiff's motion for summary adjudication is continued to **October 27, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. No further briefing is permitted.

7. S-CV-0054205 Keller Supply Co. v. Five Star Custom Pools

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Defendant and cross-complainant Merchants Bonding Company ("Merchants") moves for an award of attorneys' fees in the amount of \$10,000 from the amount previously deposited with the court by way of interpleader action pursuant to Code of Civil Procedure section 386.6(a). No opposition has been filed.

Merchants filed a motion to deposit and discharge surety pursuant to Code of Civil Procedure section 386, which the court granted on March 17, 2026. The court has discretion to award reasonable attorneys' fees and costs "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) A review of the court file reveals Merchants deposited \$25,000 on or about June 1, 2026. The court exercises its discretion to award attorneys' fees and costs to Merchants.

As to the hourly rate and hours incurred, Merchants submits evidence it incurred 37.8 hours at a rate of \$240 per hour and costs of \$1,145.20. (Decl. Sarfati and Exh. B thereto.) Merchants did not submit any billing statements. Although a party is not required to provide billing statements to support its request for attorneys' fees, the party must provide sufficiently detailed information to permit the court to assess whether the number of hours worked on each task was reasonable. The declaration of counsel

submitted in support of the motion is insufficient for this purpose. The court cannot fairly evaluate the reasonableness of the request for fees in light of the information that has been provided.

Merchants may file and serve a supplemental declaration in support of its motion by October 13, 2026, which either includes copies of billing statements (which may have privileged information redacted), or a detailed summary of the number of hours expended by each attorney on each discrete task. This motion is continued to **October 27, 2026 at 8:30 a.m. in Department 32.**

8. S-CV-0055092 Taylor, Michele Ann v. Rosebay

This tentative ruling is issued by **Commissioner Albert A. Erkel**. If oral argument is requested, it will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel.**

Motion to Set Aside Discovery and Sanctions Order

Defendant Karrie Nicole Taylor moves pursuant to Code of Civil Procedure section 473(b) to set aside the April 10, 2026 order granting plaintiff's motion to compel further responses and awarding monetary sanctions. Plaintiff opposes the motion.

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Section 473(b) encompasses the court's discretionary relief to set aside "a judgment, dismissal, order, or other proceeding" due to "the party's mistake, inadvertence, surprise, or excusable neglect," or mandatory relief to set aside default, default judgment, or dismissal based on an "attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.*) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant submits evidence that defense counsel did not receive service of the motion to compel further responses served by email on March 11, 2026 noticed for April 10, 2026 because counsel uses a software that quarantined the email serving the motion papers as well as another email from plaintiff's counsel the same day. Defendant further submits evidence that this problem was compounded by counsel's paralegal taking ill with a sudden and reoccurring illness resulting in frequent absences. Plaintiff submits evidence that plaintiff's counsel sent defense counsel a meet and confer email on March 2, 2026 and a follow-up on March 9, 2026 and left a voicemail on March 11, 2026 before the motion to compel was ever filed. Plaintiff submits further evidence that plaintiff's counsel sent a follow-up email on April 1, 2026 prior to the motion being ruled on. While defense counsel knew about the ruling at least by May 8, 2026, an additional 54 days passed before the instant motion was filed. Defendant does not explain this lapse of time.